

NON-DISCLOSURE AGREEMENT (NDA)

This Non-Disclosure Agreement (hereinafter referred to as the “Agreement”) is made and executed on this ____ day of _____, 2026.

BY AND BETWEEN:

ICEBRKR, a company incorporated under the laws of Switzerland, having its registered office at _____ and carrying on business, inter alia, through its operations in India (hereinafter referred to as the “Company” or the “Disclosing Party”, which expression shall, unless repugnant to the context or meaning thereof, include its successors and permitted assigns);

AND

_____, residing at _____ (hereinafter referred to as the “Receiving Party”, which expression shall include their legal representatives and permitted assigns).

The Company and the Receiving Party are hereinafter collectively referred to as the “Parties”.

1. OBJECTIVE

1.1 Nature of Disclosure

The Parties acknowledge that, in the course of discussions, engagement, or association with the Company, the Receiving Party may be provided access to certain confidential, proprietary, and commercially sensitive information belonging to the Company, the unauthorized use or disclosure of which may cause significant harm to the Company’s business, reputation, and competitive position.

1.2 Purpose Limitation

The purpose of this Agreement is to regulate the disclosure, use, and protection of such Confidential Information and to ensure that the Receiving Party uses such information strictly for lawful and authorized purposes as permitted by the Company.

1.3 Binding Effect

This Agreement creates legally binding obligations upon the Receiving Party with respect to the protection and handling of Confidential Information.

2. CONFIDENTIAL INFORMATION

2.1 Definition

“Confidential Information” shall include any and all information, data, or materials, whether in tangible or intangible form, disclosed by the Company to the Receiving Party, directly or indirectly, in any form whatsoever, including but not limited to written, oral, electronic, or visual information. Such information shall include any information that is expressly marked as “confidential”, “strictly confidential”, or which, by its nature or circumstances of disclosure, ought reasonably to be understood as confidential.

Confidential Information shall include, without limitation, business plans and strategies, financial information, client lists and contact information, trade secrets, technical specifications, software, source codes, algorithms, research materials, analyses, reports, internal communications, and any documents, compilations, or derivatives prepared on the basis of such information.

The Receiving Party acknowledges that all such Confidential Information is valuable and proprietary in nature and agrees to maintain strict confidentiality with respect to the same. The Receiving Party shall not disclose, use, reproduce, or otherwise exploit such Confidential Information for any purpose other than the permitted purpose, except with the prior written consent of the Company or where required by applicable law, in which case prior notice shall be provided to the Company where legally permissible.

The Receiving Party further agrees that the existence and terms of this Agreement shall be treated as confidential and shall not be disclosed to any third party without the prior written consent of the Company, except where such disclosure is required for legal, regulatory, or compliance purposes.

2.2 Proprietary Information

The Receiving Party acknowledges that during the course of its association with the Company, it may have access to certain proprietary information belonging to the Company, its clients, or its affiliates. Such proprietary information may include, without limitation, inventions, processes, systems, designs, intellectual property (including non-public patent, trademark, and

copyright information), research and development materials, technical and scientific data, marketing plans, analytical data, and commercial know-how.

All such proprietary information shall form an integral part of Confidential Information and shall be subject to the same degree of protection and confidentiality obligations as set out in this Agreement.

2.3 Exclusions

Confidential Information shall not include any information which the Receiving Party can demonstrate:

(a) was lawfully known to the Receiving Party prior to disclosure; (b) becomes publicly available without breach of this Agreement; (c) is received from a third party without any obligation of confidentiality; or (d) is independently developed without reference to the Confidential Information.

2.4 Survival of Obligations

The obligations of confidentiality set out in this Clause shall survive the termination or expiry of this Agreement for a period of three (3) years. Notwithstanding the foregoing, any information constituting trade secrets shall continue to be protected for so long as such information remains confidential in nature.

3. PERMITTED USE AND RESTRICTIONS

3.1 Permitted Purpose

The Receiving Party agrees that all Confidential Information disclosed under this Agreement shall be used solely for the purpose for which such information has been disclosed by the Company and for no other purpose whatsoever. The Receiving Party shall not use such Confidential Information for any personal, commercial, or competitive advantage, or in any manner that is detrimental to the interests of the Company.

3.2 Restriction on Disclosure

The Receiving Party shall not disclose, publish, transmit, or otherwise make available any Confidential Information, in whole or in part, to any third party without the prior written consent of the Company, except where such disclosure is strictly required by applicable law or regulatory authority. In such cases, the Receiving Party shall, to the extent legally permissible,

provide prompt written notice to the Company to enable it to seek appropriate protective measures.

3.3 Standard of Care

The Receiving Party shall exercise a degree of care in protecting the Confidential Information that is at least equal to the care it uses to protect its own confidential information of a similar nature, and in any event, not less than a reasonable standard of care, to prevent unauthorized access, use, or disclosure.

4. NON-CIRCUMVENTION

The Receiving Party agrees that it shall not, directly or indirectly, contact, engage, solicit, or enter into any business relationship with any clients, customers, vendors, investors, or business associates of the Company that were introduced to or became known to the Receiving Party during the course of its engagement with the Company, without the prior written consent of the Company. This restriction shall apply during the term of this Agreement and for a period of three (3) years thereafter. This obligation is independent of and in addition to the confidentiality obligations under this Agreement.

5. HANDLING, STORAGE, AND SECURITY OF INFORMATION

5.1 Access Limitation

The Receiving Party shall limit access to Confidential Information strictly to those individuals, if any, who have a legitimate need to know such information for the permitted purpose, and shall ensure that such individuals are bound by confidentiality obligations no less stringent than those contained in this Agreement.

5.2 Storage and Protection Measures

The Receiving Party shall implement appropriate technical and organizational measures to safeguard Confidential Information against unauthorized access, alteration, loss, or destruction, including secure storage systems and controlled access protocols.

5.3 Restriction on Copying and Transmission

The Receiving Party shall not copy, reproduce, store, or transmit any Confidential Information except as strictly necessary for the permitted purpose, and any such copies shall remain subject to the terms of this Agreement.

6. USE OF ARTIFICIAL INTELLIGENCE AND DIGITAL PLATFORMS

6.1 Restriction on Processing

The Receiving Party shall not input, upload, or otherwise process any Confidential Information using artificial intelligence tools, including but not limited to generative AI systems, chatbots, or automated platforms, unless expressly authorized in writing by the Company or processed through systems explicitly approved by the Company.

6.2 Risk Awareness

The Receiving Party acknowledges that the use of such tools may result in the storage or processing of Confidential Information on external systems beyond the control of the Company, thereby increasing the risk of unauthorized disclosure.

6.3 Responsibility for Breach

Any unauthorized disclosure or misuse of Confidential Information arising from the use of such tools shall constitute a material breach of this Agreement, and the Receiving Party shall be liable for all consequences arising therefrom.

7. RETURN OR DESTRUCTION OF CONFIDENTIAL INFORMATION

7.1 Obligation upon Request or Termination

Upon the request of the Company, or upon the termination or conclusion of the relationship between the Parties, the Receiving Party shall promptly return all Confidential Information in its possession or control.

7.2 Destruction of Copies

Where return is not practicable, the Receiving Party shall ensure the permanent deletion or destruction of all Confidential Information, including any copies, extracts, summaries, or backups, whether stored physically or electronically.

7.3 Certification of Compliance

The Receiving Party shall, upon request by the Company, provide written certification confirming that all Confidential Information has been returned or destroyed in accordance with this clause.

8. INTELLECTUAL PROPERTY RIGHTS

8.1 Ownership of Confidential Information

All Confidential Information disclosed under this Agreement shall remain the sole and exclusive property of the Company. Nothing in this Agreement shall be construed as transferring any ownership rights to the Receiving Party.

8.2 No License or Grant of Rights

The disclosure of Confidential Information shall not be deemed to grant any license, right, or interest, whether express or implied, in respect of any intellectual property of the Company, except for the limited right to use such information for the permitted purpose.

9. REMEDIES AND RELIEF

9.1 Irreparable Harm

The Receiving Party acknowledges that any breach of this Agreement may result in irreparable harm to the Company, for which monetary damages alone may not be an adequate remedy.

9.2 Injunctive Relief

Accordingly, the Company shall be entitled to seek injunctive relief, specific performance, or any other equitable remedy to prevent or mitigate any breach or threatened breach of this Agreement.

9.3 Additional Remedies

Such remedies shall be in addition to, and not in lieu of, any other rights or remedies available to the Company under applicable law.

10. INDEMNITY

The Receiving Party agrees to indemnify, defend, and hold harmless the Company, its affiliates, directors, officers, employees, and agents from and against any and all losses, damages, liabilities, claims, costs, and expenses (including reasonable legal fees and expenses) arising out of or in connection with any breach of this Agreement by the Receiving Party, including any unauthorized use or disclosure of Confidential Information.

11. GOVERNING LAW, DISPUTE RESOLUTION, AND JURISDICTION

11.1 Applicable Law

This Agreement shall be governed by and construed in accordance with the laws of Switzerland.

11.2 Arbitration

Any dispute, controversy, or claim arising out of or in connection with this Agreement, including any question regarding its existence, validity, interpretation, performance, breach, or termination, shall be referred to and finally resolved by arbitration. The seat and legal place of arbitration shall be Singapore, and the arbitration shall be conducted in accordance with the rules of the Singapore International Arbitration Centre (SIAC Rules) for the time being in force, which rules are deemed to be incorporated by reference into this clause. The arbitral award shall be final and binding on the Parties.

11.3 Composition and Language

The arbitral tribunal shall consist of a sole arbitrator to be mutually appointed by the Parties. In the event that the Parties fail to agree upon the appointment of the arbitrator, such appointment shall be made in accordance with the SIAC Rules. The language of the arbitration proceedings shall be English.

11.4 Jurisdiction

Subject to the arbitration provisions set out above, the courts of _____, Switzerland shall have jurisdiction solely for the purposes of seeking interim relief and enforcement of arbitral awards.

11.5 Interim Relief

Nothing in this Agreement shall prevent either Party from seeking interim or injunctive relief from any court of competent jurisdiction, including courts in Switzerland, Singapore, or any other relevant jurisdiction, pending the final resolution of disputes through arbitration.

12. GENERAL PROVISIONS

12.1 Entire Agreement

This Agreement constitutes the entire understanding between the Parties with respect to its subject matter and supersedes all prior discussions, negotiations, or agreements.

12.2 Amendments

No amendment or modification of this Agreement shall be valid unless made in writing and signed by both Parties.

12.3 Severability

If any provision of this Agreement is held to be invalid or unenforceable, the remaining provisions shall continue in full force and effect.

12.4 Waiver

No failure or delay by either Party in exercising any right under this Agreement shall operate as a waiver of such right.

IN WITNESS WHEREOF, THE PARTIES HERETO HAVE EXECUTED THIS CONFIDENTIALITY AGREEMENT IN DUPLICATE BY AFFIXING THE SIGNATURE OF THE AUTHORISED REPRESENTATIVES AS OF THE DATE HEREIN ABOVE MENTIONED.

COMPANY			RECEIVING PARTY	
Signature			Signature	
Name			Name	
Designation			Designation	
Place			Place	
Date			Date	

